



General Assembly

February Session, 2026

Substitute Bill No. 231



AN ACT CONCERNING THE DEPARTMENT OF CONSUMER PROTECTION'S RECOMMENDATIONS REGARDING CANNABIS REGULATION AND ELECTRONIC NICOTINE DELIVERY SYSTEM DEALER REGISTRATION.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 21a-408w of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective from passage*):

3 (a) Each cannabis establishment shall submit marijuana samples to a
4 cannabis testing laboratory for testing [as set forth in subsection (b) of
5 this section] in accordance with the laboratory testing standards
6 established in the policies and procedures issued, and final regulations
7 adopted, by the Commissioner of Consumer Protection pursuant to
8 section 21a-421j.

9 [(b) (1) A cannabis testing laboratory shall test each marijuana sample
10 submitted pursuant to subsection (a) of this section (A) for
11 microbiological contaminants, mycotoxins, heavy metals and pesticide
12 chemical residue, and (B) for purposes of conducting an active
13 ingredient analysis, if applicable.

14 (2) Microbiological contaminant testing conducted pursuant to
15 subparagraph (A) of subdivision (1) of this subsection shall include, but
16 not be limited to, microbiological contaminant testing for *Aspergillus*

17 species as set forth by the Department of Consumer Protection and
18 posted on the department's Internet web site.

19 (c) When conducting microbiological testing as set forth in subsection
20 (b) of this section, the marijuana sample shall be tested by using (1) a
21 molecular method that (A) includes quantitative polymerase chain
22 reaction, (B) is certified for identifying microbiological DNA, and (C) is
23 approved by (i) the Association of Official Analytical Collaboration
24 International, or (ii) a comparable national or international standards
25 organization designated by the Commissioner of Consumer Protection,
26 or (2) an alternative testing method approved by the Department of
27 Consumer Protection and posted on the department's Internet web site.]

28 [(d)] (b) If a marijuana sample [does not pass] fails the testing [set
29 forth in] required under subsection [(b)] (a) of this section, the cannabis
30 establishment that submitted [such] the failing marijuana sample to the
31 cannabis testing laboratory shall, not later than sixty days after the date
32 of such failed testing, either:

33 (1) Repeat the testing [as set forth in subsections] required under
34 subsection (a) [and (b)] of this section on the marijuana batch from
35 which such marijuana sample was taken, in a form and manner
36 approved by the Department of Consumer Protection. If all repeated
37 testing yields satisfactory results, the marijuana batch from which the
38 marijuana samples were taken shall be released for sale; or

39 (2) If such cannabis establishment submits to the Commissioner of
40 Consumer Protection a remediation plan that is sufficient to ensure
41 public health and safety, and the commissioner approves such
42 remediation plan, remediate the marijuana batch from which such
43 marijuana sample was taken and repeat all testing [as set forth in
44 subsections] required under subsection (a) [and (b)] of this section on
45 such remediated marijuana batch, in a form and manner approved by
46 the Department of Consumer Protection. If all repeated testing yields
47 satisfactory results, the marijuana batch from which the marijuana
48 samples were taken shall be released for sale. [; or]

49 [(3)] (c) If [such] a cannabis establishment does not comply with
50 [subdivision (1) or (2) of this] subsection (b) of this section, or if any
51 subsequent laboratory testing does not yield satisfactory results for the
52 testing [set forth in subsections] required under subsection (a) [and (b)]
53 of this section, the cannabis establishment shall dispose of the entire
54 marijuana batch from which the marijuana sample was taken in
55 accordance with procedures established by the Commissioner of
56 Consumer Protection, as published on the Department of Consumer
57 Protection's Internet web site. The cannabis establishment shall
58 complete such disposal not later than sixty days after the later of (1) the
59 date of the failed testing performed pursuant to subsection (a) of this
60 section, (2) the date of the failed repeated testing performed pursuant to
61 subsection (b) of this section, or (3) if no repeated testing is performed
62 pursuant to subsection (b) of this section, expiration of the sixty-day
63 period established in subsection (b) of this section for the performance
64 of such repeated testing. During such sixty-day period, the cannabis
65 establishment may submit a written request to the department, in a form
66 and manner prescribed by the commissioner, to extend such sixty-day
67 period. The commissioner may grant or deny such request in the
68 commissioner's discretion.

69 [(e)] (d) For purposes of the testing [set forth in subsections] required
70 under subsection (a) [and (b)] of this section, the quantity and number
71 of marijuana samples taken shall be sufficient to ensure representative
72 sampling of the corresponding marijuana batch size.

73 Sec. 2. Subsection (c) of section 21a-415 of the 2026 supplement to the
74 general statutes is repealed and the following is substituted in lieu
75 thereof (*Effective from passage*):

76 (c) (1) Any applicant for a dealer registration or a renewal of a dealer
77 registration shall apply to the Department of Consumer Protection, in a
78 form and manner prescribed by the Commissioner of Consumer
79 Protection, which application shall include, at a minimum:

80 (A) The name, address and electronic mail address of the applicant;

81 (B) The location that is to be operated under such dealer registration;

82 (C) The name of, and contact information for, each individual who
83 has a direct or indirect financial interest in such applicant, unless (i) such
84 applicant is a publicly traded company listed on a national stock
85 exchange, or (ii) the financial interest held by such individual owner and
86 such individual's spouse, parents and children, in the aggregate, does
87 not exceed ten per cent of the total ownership or interest rights in such
88 applicant;

89 (D) A third-party local and national criminal background check for
90 each owner listed on such application, which background check shall (i)
91 be conducted by a third-party consumer reporting agency or
92 background screening company that is in compliance with the federal
93 Fair Credit Reporting Act and accredited by the Professional
94 Background Screening Association, (ii) include a multistate and
95 multijurisdiction criminal record locator or other similar commercial
96 nation-wide database with validation and such other background
97 screening as the commissioner may require, and (iii) be requested by
98 such applicant not more than sixty days prior to submission of such
99 application;

100 (E) The name of the individual who shall serve as the fiduciary agent
101 and guarantor for such applicant, which individual shall be personally
102 liable in the event of any noncompliance that results in a debt owed to
103 the department;

104 (F) A disclosure of any enforcement action against, and any
105 negotiated settlement entered into by, such applicant or any owner
106 disclosed pursuant to this subsection, which action or settlement is
107 related to the sale of cigarettes, electronic nicotine delivery systems,
108 tobacco products or vapor products;

109 (G) The name of a manager or supervisor who is or will be physically
110 present at such applicant's location or proposed location; and

111 (H) A certification that an authorized owner or named designee of

112 such applicant has successfully completed the online prevention
113 education program administered by the Department of Mental Health
114 and Addiction Services pursuant to section 17a-719.

115 (2) The Department of Consumer Protection: (A) May require that an
116 applicant submit documents sufficient to establish that state and local
117 building, fire and zoning requirements will be met at the location of any
118 sale; (B) may, in the department's discretion, conduct an investigation to
119 determine whether a dealer registration shall be issued to an applicant;
120 and (C) shall not issue a dealer registration or a renewal of a dealer
121 registration to an applicant unless the applicant certifies that an
122 authorized owner or named designee of the applicant has successfully
123 completed the online prevention education program administered by
124 the Department of Mental Health and Addiction Services pursuant to
125 section 17a-719.

126 (3) The commissioner shall issue a dealer registration or a renewal of
127 a dealer registration to any such applicant not later than thirty days after
128 the date of application unless the commissioner finds: (A) The applicant,
129 or any individual named in such application pursuant to subparagraph
130 (C) of subdivision (1) of this subsection, has made a materially false or
131 misleading statement in such application or in any other application
132 made to the commissioner; (B) the applicant has neglected to pay any
133 taxes due to this state; (C) the authorized owner or named designee of
134 the applicant has not successfully completed the online prevention
135 education program administered by the Department of Mental Health
136 and Addiction Services pursuant to section 17a-719; (D) the third-party
137 local and national criminal background check for any authorized owner
138 or named designee of the applicant [has a criminal history that is]
139 affords a sufficient basis for denial under section 46a-80; or (E) the
140 applicant, any authorized owner of the applicant or any entity owned
141 or managed by any individual named in the applicant's application
142 pursuant to subparagraph (C) of subdivision (1) of this subsection (i) has
143 [violated] committed multiple violations of any other provision of this
144 section, (ii) is the subject of a delinquency assessment from the
145 Department of Revenue Services, or (iii) is the subject of any other

146 adverse administrative decision from a government agency.

147 (4) A dealer registration issued under this section shall be renewed
 148 annually and may be suspended or revoked at the discretion of the
 149 Department of Consumer Protection. A dealer registration shall not
 150 constitute property, nor shall it be subject to attachment and execution,
 151 nor shall it be alienable. Each holder of a dealer registration shall
 152 annually attest in each renewal application as to whether such holder
 153 derived at least fifty per cent of its annual gross revenue from sales of
 154 cigarettes, drug paraphernalia, electronic nicotine delivery systems,
 155 nicotine products, synthetic nicotine, tobacco products and vapor
 156 products.

157 (5) The applicant shall pay to the department a nonrefundable
 158 application fee of one thousand dollars, which fee shall be in addition to
 159 the annual fee prescribed in subsection (d) of this section. An application
 160 fee shall not be charged for an application to renew a dealer registration.

161 Sec. 3. Subdivision (1) of section 21a-420 of the 2026 supplement to
 162 the general statutes is repealed and the following is substituted in lieu
 163 thereof (*Effective from passage*):

164 (1) "Responsible and Equitable Regulation of Adult-Use Cannabis
 165 Act" or "RERACA" means this section, sections 2-56j, 7-294kk, 7-294ll,
 166 12-330ll to 12-330nn, inclusive, 14-227p, 21a-278b, 21a-278c, 21a-279c,
 167 21a-279d, 21a-408w, as amended by this act, 21a-420a to 21a-420j,
 168 inclusive, 21a-420l to 21a-421u, inclusive, 21a-421aa to 21a-421ff,
 169 inclusive, 21a-421aaa to 21a-421iii, inclusive, 21a-422 to 21a-422c,
 170 inclusive, 21a-422e to 21a-422g, inclusive, 21a-422j to 21a-422s, inclusive,
 171 21a-422u, 22-61n, 23-4b, 47a-9a, 53-247a, 53a-213a, 53a-213b, 54-33p, 54-
 172 56q, 54-56r, 54-125k and 54-142u, sections 23, 60, 63 to 65, inclusive, 124,
 173 144 and 165 of public act 21-1 of the June special session, and the
 174 amendments in public act 21-1 of the June special session to sections 7-
 175 148, 10-221, 12-30a, 12-35b, 12-412, 12-650, 12-704d, 14-44k, 14-111e, 14-
 176 227a to 14-227c, inclusive, 14-227j, 15-140q, 15-140r, 18-100h, 19a-342,
 177 19a-342a, 21a-267, 21a-277, 21a-279, 21a-279a, 21a-408 to 21a-408f,

178 inclusive, 21a-408h to 21a-408p, inclusive, 21a-408r to 21a-408v,
179 inclusive, 30-89a, 31-40q, 32-39, 46b-120, 51-164n, 53-394, 53a-39c, 54-1m,
180 54-33g, 54-41b, 54-56e, 54-56g, 54-56i, 54-56k, 54-56n, 54-63d, 54-66a and
181 54-142e, [and] section 22 of public act 25-101 and section 4 of this act;

182 Sec. 4. (NEW) (*Effective from passage*) (a) Each cannabis establishment
183 shall submit cannabis samples to a cannabis testing laboratory for
184 testing in accordance with the laboratory testing standards established
185 in the policies and procedures issued, and final regulations adopted, by
186 the commissioner pursuant to section 21a-421j of the general statutes.

187 (b) If a cannabis sample fails the testing required under subsection (a)
188 of this section, the cannabis establishment that submitted the failing
189 cannabis sample to the cannabis testing laboratory shall, not later than
190 sixty days after the date of such failed testing, either:

191 (1) Repeat the testing required under subsection (a) of this section on
192 the cannabis batch from which such cannabis sample was taken, in a
193 form and manner approved by the department. If all repeated testing
194 yields satisfactory results, the cannabis batch from which the cannabis
195 samples were taken shall be released for sale; or

196 (2) If such cannabis establishment submits to the commissioner a
197 remediation plan that is sufficient to ensure public health and safety,
198 and the commissioner approves such remediation plan, remediate the
199 cannabis batch from which such cannabis sample was taken and repeat
200 all testing required under subsection (a) of this section on such
201 remediated cannabis batch, in a form and manner approved by the
202 department. If all repeated testing yields satisfactory results, the
203 cannabis batch from which the cannabis samples were taken shall be
204 released for sale.

205 (c) If a cannabis establishment does not comply with subsection (b) of
206 this section, or if any subsequent laboratory testing does not yield
207 satisfactory results for the testing required under subsection (a) of this
208 section, the cannabis establishment shall dispose of the entire cannabis
209 batch from which the cannabis sample was taken in accordance with

210 procedures established by the commissioner, as published on the
 211 department's Internet web site. The cannabis establishment shall
 212 complete such disposal not later than sixty days after the later of (1) the
 213 date of the failed testing performed pursuant to subsection (a) of this
 214 section, (2) the date of the failed repeated testing performed pursuant to
 215 subsection (b) of this section, or (3) if no repeated testing is performed
 216 pursuant to subsection (b) of this section, expiration of the sixty-day
 217 period established in subsection (b) of this section for the performance
 218 of such repeated testing. During such sixty-day period, the cannabis
 219 establishment may submit a written request to the department, in a form
 220 and manner prescribed by the commissioner, to extend such sixty-day
 221 period. The commissioner may grant or deny such request in the
 222 commissioner's discretion.

223 (d) For purposes of the testing required under subsection (a) of this
 224 section, the quantity and number of cannabis samples taken shall be
 225 sufficient to ensure representative sampling of the corresponding
 226 cannabis batch size.

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>from passage</i>	21a-408w
Sec. 2	<i>from passage</i>	21a-415(c)
Sec. 3	<i>from passage</i>	21a-420(1)
Sec. 4	<i>from passage</i>	New section

GL *Joint Favorable Subst.*